

		The court will award costs of \$192.20. Cross-Defendant Parker shall give notice of this ruling.
8	Selinger vs. American Honda Motor Company, Inc. 30-2023-01348476	<u>Motions to Compel Discovery</u> Pursuant to Defendant American Honda Motor Co., Inc.'s Notice of Withdrawal of Its Four Motions to Compel filed April 8, 2025, (ROA #149), these matters are taken OFF CALENDAR.
9	Toone vs. Kairos Manford Private Equity Fund I LP 30-2023-01357763	<u>Motion to Be Relieved as Counsel</u> Counsel Blank Rome LLP's, Cheryl S. Chang's, and Harrison Brown's Motion to Be Relieved as Counsel for Plaintiff Sheng Zhang is CONTINUED to June 9, 2025 at 9:00 a.m. in Department N15. Counsel Blank Rome LLP, Cheryl S. Chang, and Harrison Brown are ORDERED to file with the court and serve on Plaintiff Sheng Zhang a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), in the manner in Rules of Court rule 3.1362(d), within 30 days of this ruling. <u>Pending Motion</u> Counsel Blank Rome LLP, Cheryl S. Chang, and Harrison Brown (Counsel) move to be relieved as counsel for Plaintiff Sheng Zhang. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).)

		No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) Here, the motion papers did not include a proposed <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (Form MC-053) or any indication that such a document had been served on Plaintiff Sheng Zhang.
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		Therefore, the court will continue the hearing on this motion and order that Counsel file and lodge the proposed order with the court and serve it upon Plaintiff Sheng Zhang as required by California Rules of Court Rule 3.1362. Counsel shall give notice of this ruling.
10	United Auto Credit Corporation vs. Ethos Auto Group LLC 30-2023-01336690	<u>Motion for Summary Judgment and/or Summary Adjudication</u> Plaintiff United Auto Credit Corporation's Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication is DENIED without prejudice. <u>Pending Motion</u> Plaintiff United Auto Credit Corporation moves for summary judgment as to the Complaint. In the alternative, Plaintiff moves for summary adjudication as to the 1st Cause of Action against Defendant Ethos Auto Group LLC (Defendant Ethos) and the 2nd Cause of Action against Defendant Takeshi Hayashi (Defendant Hayashi). <u>Standard for Summary Judgment or Summary Adjudication</u> A party may move for summary judgment, which "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) In addition, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c, subd. (f)(1).)